

# 25STCV19071 25STCV19071

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-07-02

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C307%2C07%2F02%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C307%2C07%2F02%2F2026)

Source SHA-256: e8678ad4dc986d9ef6b009b2415147541ee9c22e1e4f8b51855df2f3ce28ab69

Case Number: 25STCV19071 Hearing Date: July 2, 2026 Dept: 307

# 8 TENTATIVE RULING 9:15 a.m., Thursday, July 2, 2026

DANIELLE

UWAOMA v. WILSHIRE CREST HOTEL, et al. [25STCV19071]

MOTION

TO QUASH SERVICE OF SUMMONS OF DEFENDANTS JOSEPH TOMASZEWSKI AND GUERTA TOMASZEWSKI

BACKGROUND:

Complaint alleges battery, negligence, premises liability, IIED, fraud, etc.  
arising from bedbug bites during hotel stay

TIMELINE:

7/28/2023: Plaintiff Danielle Uwaoma

("Plaintiff") checks into Defendant Wilshire Crest Hotel (the "Hotel") and is assigned to a guest room. Plaintiff alleges that Defendants Joseph Tomaszewski ("J. Tomaszewski") and Guerta Tomaszewski ("G. Tomaszewski") (collectively, "Moving Defendants") own, operate, and manage the Hotel.

7/29/2023: Plaintiff discovers that she has bed bug bites across her body. Plaintiff immediately reports the bites to the Hotel's front desk staff, and the staff reassigns Plaintiff to a new guest room.

7/30/2023: Plaintiff checks out of the Hotel.

8/4/2023: When Plaintiff seeks medical treatment, she is diagnosed with bed bug bites and is prescribed medication. Plaintiff alleges that she still has physical scars and emotional distress from the bites.

6/30/2025: Plaintiff files the Complaint, alleging causes of action for:

1. Battery
2. Negligence
3. Premises Liability
4. Intentional Infliction of Emotional Distress
5. Fraudulent Concealment
6. Private Nuisance
7. Public Nuisance
8. Breach of Contract

6/5/2026: Moving Defendants file this Motion to Quash Service of Summons. As of 6/30/2026, Plaintiff has not filed an Opposition.

TENTATIVE

RULING: MOTION TO QUASH SERVICE OF SUMMONS OF DEFENDANTS JOSEPH TOMASZEWSKI AND GUERTA TOMASZEWSKI is GRANTED.

I. MOTION  
TO QUASH SERVICE OF SUMMONS

Moving

Defendants specially appear to move for an order quashing the service of Plaintiff's Summons and Complaint on them in the instant matter on the grounds that service of process was not validly effected on either of them.

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan, (2006) 140 Cal.App.4th 403, 413.) “The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements.” (Floveyor Internat., Ltd. V. Superior Court (1997) 59 Cal.App.4th 789, 795.)

Here, Plaintiff

filed the respective Proofs of Service as to each of the Moving Defendants on 2/13/2026. (See RJN, Nos. 2-3.) The Proof of Service pertaining to J. Tomaszewski suggests that he was personally served at 6301 Orange St., Los Angeles, CA 90048 (the address of the Hotel) on 12/30/2025. (RJN, No. 2.) The Proof of Service pertaining to G. Tomaszewski suggests that she was served by substituted service at the same address on 1/5/2026 by delivering the Summons and the Complaint to “John Doe,” an alleged employee of the Hotel. (RJN, No. 3.) Moving Defendants deny that these Proofs of Service reflect valid service of process for the reasons described below. (Mot., at p. 3.)

First, with

respect to the alleged personal service upon J. Tomaszewski, Moving Defendants submit evidence suggesting that J. Tomaszewski was not the individual described in the Proof of Service as the recipient of service. The process server described the individual who was the purported subject of service as a 55-year-old, 5’6” Asian male with Brown hair. (RJN, No. 2.) By contrast, J. Tomaszewski declares that he is over 70 years old, 5’11” tall, has white hair, and is not of Asian descent. (Tomaszewski Decl., ¶¶ 1, 5.) J. Tomaszewski also denies that he was physically present on the Hotel premises at the time of the purported service on 12/30/2025 at 4:49am. (Id. ¶ 4.) Because the weight of the evidence indicates that J. Tomaszewski is not the individual described as the recipient of “personal service” in Plaintiff’s Proof of Service, Plaintiff is not entitled to the presumption of valid service.

Second,

with respect to the alleged substituted service upon G. Tomaszewski, Moving Defendants contend that the individual who purportedly accepted service on behalf of G. Tomaszewski was not authorized to accept service on her behalf. J.

Tomaszewski declares on behalf of his wife, G. Tomaszewski, that she suffers from Alzheimer's/Dementia and that they typically remain in their home every day, which is not located at the Hotel premises. (Tomaszewski Decl., ¶ 2.) Based on G. Tomaszewski's diagnosis, it is reasonable to infer that the Hotel is not her "usual place of business." At minimum, a reasonably diligent process server should have inquired at the Hotel to determine if G. Tomaszewski regularly worked there. Nevertheless, the process server made no attempt to serve G. Tomaszewski at other locations, including her residence. Under Code of Civil Procedure section 415.20, service of process on a natural person may only be effectuated by substituted service "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served..." "[T]he burden is upon the plaintiff to show reasonable diligence to effect personal service and each case must be judged upon its own facts." (Evaritt v. Superior Court (1979) 89 Cal.App.3d 795, 801.) Generally, "in order to avail oneself of substituted service under section 415.20, [t]wo or three attempts to personally serve a defendant at a proper place ordinarily qualifies as reasonable diligence." (Board of Trustees of Leland Stanford Junior University v. Ham (2013) 216 Cal.App.4th 330, 337, italics added.) Based on the evidentiary record, the Court finds that the process server failed to show that he acted with reasonable diligence in attempting to serve G. Tomaszewski.

Moreover, even if the Hotel was a proper place to effect substituted service upon G. Tomaszewski, the Proof of Service fails to specify that the unidentified employee with whom the Summons and the Complaint were left on behalf of G. Tomaszewski was "a person apparently in charge" at the Hotel. (Code Civ. Proc., § 415.20, subd. (b)(2).) J. Tomaszewski declares on behalf of his wife that the individual described in the Proof of Service does not match any person who had the authority to accept service on his wife's behalf. (Tomaszewski Decl., ¶ 5.) Because the weight of the evidence indicates that the process server failed to comply with the statutory requirements to effect service of process upon G. Tomaszewski, Plaintiff is not entitled to the presumption of valid service.

By failing to file an opposition to this motion to quash, Plaintiff does not overcome her burden of demonstrating compliance with the statutory requirements for valid proof of either personal or substituted service on Moving Defendants.

(Bolkiah v. Superior Court (1999) 74 Cal.App.4th 984, 991 ["Once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service."].)

Therefore,

Moving Defendants' Motion to Quash Service of the Summons and the Complaint is GRANTED.

## II. REQUESTS FOR JUDICIAL NOTICE

Moving

Defendants request judicial notice of the following court documents in support of their motion to quash:

1. Plaintiff's Complaint in this action
2. Plaintiff's Proof of Service as to J. Tomaszewski, filed 2/13/2026
3. Plaintiff's Proof of Service as to G. Tomaszewski, filed 2/13/2026
4. All subsequent Proofs of Service as to the Moving Defendants

Moving

Defendants also request judicial notice of the following facts: (1) that no Notices of Default have been entered as to either of the Moving Defendants or the Hotel as of 6/4/2026, (2) the Moving Defendants' specially appearing status (filed 6/5/2026), and (3) that the Hotel has been a limited liability company since 2012, as in the Articles of Organization filed with the California Secretary of State.

The Court

takes judicial notice of Requests No. 1-8 pursuant to Evidence Code section 452, subdivision (d) and of Request No. 9 pursuant to Evidence Code section 452, subdivision (c).

Defendants Joseph Tomaszewski and Guerta

Tomaszewski to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 7/1/26 at 1:30 p.m.